

HOUSE BILL No. 1075

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-26-22.

Synopsis: Mental health and substance use disorder screening. Requires each school corporation and charter school to develop a plan to conduct developmentally appropriate evidence based: (1) mental health screening; and (2) substance use disorder screening; for students in kindergarten through grade 12. Establishes notification, consent, and data destruction requirements. Requires the department of education to make available to school corporations and charter schools developmentally appropriate evidence based mental health screening and substance use disorder screening tools and resources.

Effective: July 1, 2026.

Andrade, DeLaney, Pfaff

January 5, 2026, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1075

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-26-22 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 22. Mental Health and Substance Use Disorder**
5 **Screening**

6 **Sec. 1. (a) Each school corporation and charter school shall**
7 **develop a plan to conduct developmentally appropriate evidence**
8 **based:**

9 (1) mental health screening; and

10 (2) substance use disorder screening;

11 **for students in kindergarten through grade 12.**

12 **(b) A mental health screening under this chapter must include**
13 **screening for the following:**

14 (1) High risk for later violence.

15 (2) Resilience.

16 **Sec. 2. Each school corporation and charter school shall notify**
17 **a student's parent, if the student is an unemancipated minor, of the**



plan to conduct a screening described in section 1 of this chapter, including the:

- (1) purpose of the screening; and
- (2) approximate date and time the screening will be conducted.

Sec. 3. A school corporation or charter school may not conduct a mental health screening or substance use disorder screening of a student under this chapter without the consent of:

- (1) the student, if the student is an adult or emancipated minor; or
- (2) a parent of the student, if the student is an unemancipated minor.

Sec. 4. (a) If a student is an unemancipated minor, a school corporation or charter school shall:

- (1) notify the student's parent of any results from a mental health screening or substance use disorder screening under this chapter;
- (2) provide the parent a copy of the results; and
- (3) if applicable, provide the parent a list of resources available to the student in the school or community.

(b) If the student is an adult or emancipated minor, the school corporation or charter school shall provide the student with the information described in subsection (a).

Sec. 5. (a) The department shall make available to a school corporation and charter school:

- (1) developmentally appropriate evidence based:
 - (A) mental health screening tools; and
 - (B) substance use disorder screening tools; and
- (2) other applicable developmentally appropriate evidence based resources;

to assist the school corporation and charter school with implementing mental health screening and substance use disorder screening under this chapter.

(b) The department shall consult with the division of mental health and addiction in selecting evidence based screening tools and resources under this section.

Sec. 6. A school corporation or charter school may not use the results of a mental health screening or substance use disorder screening to make any decision relating to the student's instruction, academic opportunities, or discipline.

Sec. 7. Except as otherwise provided under federal or state law, if the results of a screening under this chapter indicate additional



1 care is needed for the student, the school corporation or charter
2 school is not responsible for providing the additional care to the
3 student.

4 Sec. 8. Any records relating to a mental health screening or
5 substance use disorder screening must be maintained in
6 accordance with any applicable federal privacy laws.

7 Sec. 9. Unless otherwise provided under federal law, any mental
8 health screening or substance use disorder screening data collected
9 by a school corporation or charter school under this chapter must
10 be destroyed by the earlier of the following:

11 (1) The date that the school corporation or charter school
12 notifies a student's parent or the student of the results as
13 required under section 4 of this chapter.

14 (2) Sixty (60) days after the date that the school corporation
15 or charter school obtains the results of the mental health
16 screening or substance use disorder screening.

